

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

BARBARA VALCARCEL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
LIOSMELY HOLGUIN and JOHN DOES-Police
Officers as yet unidentified,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER LIOSMELY HOLGUIN
c/o Midtown North Police Precinct
306 West 54th Street
New York, New York 10019

Dated: Brooklyn, New York
November 10, 2020

Index #

Date of filing:

Plaintiff designates New York
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiff resides at
9 Thayer Street, Apt A1
New York, New York 10040

County of New York

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
BARBARA VALCARCEL,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
LIOSMELY HOLGUIN and JOHN DOES-Police
Officers as yet unidentified,Defendants.
-----X

Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF BARBARA VALCARCEL**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on February 11, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on August 31, 2020.

6. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BARBARA VALCARCEL, was lawfully present inside the premises known as St. Patrick's Cathedral, located at 5th Avenue, between 50th and 51st Street, in the County, City and State of New York.

8. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, at the aforementioned location, the plaintiff, BARBARA VALCARCEL, was approached and was assaulted and battered by the defendants POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed, pushed, slammed to the ground and was forcefully handcuffed. The plaintiff was arrested and was taken into police custody and was transported to the Midtown North Police Precinct where she was held until approximately 12:30 a.m., on December 16, 2019. She then was taken to the New York Central Booking, where she was arraigned and then released at approximately 11:00 a.m. on said date.

9. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BARBARA VALCARCEL, was assaulted and battered by defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, BARBARA VALCARCEL, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF BARBARA VALCARCEL**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, BARBARA VALCARCEL.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER

LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF BARBARA VALCARCEL**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, BARBARA VALCARCEL.

21. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, plaintiff, BARBARA VALCARCEL, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF BARBARA VALCARCEL**

24. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

26. That the defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF BARBARA VALCARCEL**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, BARBARA VALCARCEL.

31. That as a result of said intentional and negligent acts, the plaintiff, BARBARA VALCARCEL, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF BARBARA VALCARCEL

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, BARBARA VALCARCEL.

36. That on December 15, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF OF BARBARA VALCARCEL

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at

length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, BARBARA VALCARCEL.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, BARBARA VALCARCEL, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF BARBARA VALCARCEL**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited POLICE OFFICER LIOSMELY HOLGUIN and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, BARBARA VALCARCEL, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

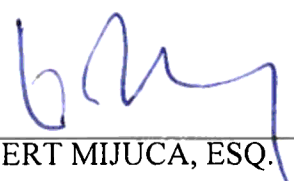
I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

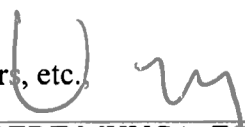
Dated: Brooklyn, New York
November 10, 2020



ROBERT MIJUCA, ESQ.

on the **Seventh** Cause of Action; plaintiff, BARBARA VALCARCEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 10, 2020

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
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File No.: 19BV12-15